

1 ENGROSSED SENATE
2 BILL NO. 1439

By: Daniels and Thompson of the
Senate

3 and

4 Moore and Archer of the
5 House

6
7 An Act relating to oil and gas; creating the Energy
8 Security and Independence Act; providing short title;
9 providing legislative purpose; defining terms;
10 prohibiting covered civil liability actions;
11 construing provisions; providing for codification;
12 and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 46.5 of Title 52, unless there
16 is created a duplication in numbering, reads as follows:

17 A. This act shall be known and may be cited as the "Energy
18 Security and Independence Act".

19 B. The purposes of this act are:

20 1. To prohibit causes of action against those who lawfully
21 produce, manufacture, purchase for generation of electricity, or
22 sell fossil fuels and their trade associations, when this highly
23 regulated product functions as designed and intended;

24 2. To preserve lawful access to affordable, clean, and reliable
fossil fuels that increase the productive capacity of this state and

1 thereby bolster economic growth and its downstream benefits
2 including, but not limited to, a tax base, jobs, and increased
3 worker access to health care and housing; and

4 3. To prevent the use of lawsuits that seek the imposition of
5 unreasonable burdens on the commerce of fossil fuels.

6 C. As used in this section:

7 1. "Covered civil liability action" means any civil action or
8 proceeding, including any administrative proceeding, brought against
9 a manufacturer, producer, processor, fractionator, refiner, storage
10 operator, pipeline operator, transporter, or seller of covered
11 product or any purchaser of covered product for the generation of
12 electricity for legal or equitable relief of any kind arising out of
13 or resulting from the production, manufacture, processing,
14 fractionation, refinement, storage, transportation, marketing, sale,
15 or use of covered product and such action or proceeding arises out
16 of or relates to, or seeks relief of any kind arising out of or
17 relating to, climate change, the alleged effects of climate change,
18 or greenhouse emissions. Covered civil liability action includes,
19 but is not limited to, any cause of action for fraud,
20 misrepresentation, deception, or failure to warn, whether statutory
21 or at common law, that purports to seek relief for climate change,
22 the alleged effects of climate change, or greenhouse emissions.
23 Covered civil liability action shall not include an action,
24

1 proceeding, or administrative proceeding brought for unlawful acts
2 arising out of:

3 a. a violation of federal or state environmental law or
4 regulation establishing a standard or operational
5 practice governing the emission, discharge, or storage
6 of covered product, or

7 b. a violation of federal or state worker protection
8 laws;

9 2. "Covered product" means a fossil fuel or fossil fuels;

10 3. "Engaged in the business" means any party that produces,
11 manufactures, transports, sells, or is otherwise involved in
12 intrastate, interstate, or foreign commerce of covered product and
13 any party that devotes time, attention, or labor to the production,
14 manufacture, transportation, or sale of covered product as a regular
15 course of trade or business with the principal objective of
16 livelihood or profit;

17 4. "Fossil fuel" or "fossil fuels" means natural gas, oil,
18 coal, liquefied petroleum gas, natural gas liquids, refined
19 products, and any product derived from such material;

20 5. "Manufacturer" means any person or entity that is engaged in
21 the business of manufacturing covered product, including any person
22 or entity that produces, processes, fractionates, refines, stores,
23 or transports covered product for its lawful use and sale for
24 profit;

1 6. "Person" means any individual, corporation, company,
2 association, firm, partnership, society, joint stock company, or any
3 other entity, including governmental entities;

4 7. "Producer" means any person or entity that is engaged in the
5 business of exploration, production, or transportation of covered
6 product or any of its constituent portions for its lawful use and
7 sale for profit;

8 8. "Seller" means any importer, exporter, dealer, wholesaler,
9 or retailer that is engaged in the business of selling covered
10 product for profit;

11 9. "Trade association" means any corporation, unincorporated
12 association, federation, business league, or professional or
13 business organization not organized or operated for profit and no
14 part of the net earnings of which inure to the benefit of any
15 private shareholder or individual; and

16 10. "Transporter" means any person or entity that is engaged in
17 the business of transporting, transferring, conveying, or moving
18 covered product or any of its constituent portions for its lawful
19 use and sale for profit.

20 D. 1. A covered civil liability action may not be brought in
21 any court in this state.

22 2. No provision of this section shall be construed to create a
23 public or private cause of action or remedy.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 10th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives